

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lindsay Broughel	Team: Team # 8	CCRB Case #: 200918565	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 11/21/2009 6:50 PM	Location of Incident: § 87(2)(b)	Precinct: 77	18 Mo. SOL 5/21/2011	EO SOL 5/21/2011	
Date/Time CV Reported Mon, 11/30/2009 12:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 12/04/2009 10:27 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			077 PCT
2. POM David Afanador	31730	936100	077 PCT
3. POM Jason Brunson	17542	944393	077 PCT
4. POM James Davis	27311	932527	077 PCT
5. Officers			077 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Daniel Zollo	05627	919899	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Force: Officers used physical force against § 87(2)(b) and § 87(2)(b)	
B. Officers	Abuse: Officers threatened § 87(2)(b) and § 87(2)(b) with the use of force.	
C. POM James Davis	Force: PO § 87(2)(b) Davis used physical force against § 87(2)(b) and § 87(2)(b)	
D. POM Jason Brunson	Force: PO Jason Brunson used physical force against § 87(2)(b)	
E. POM David Afanador	Force: PO David Afanador struck § 87(2)(b) with an asp.	

Officer(s)	Allegation	Investigator Recommendation
F. An officer	Force: An officer used physical force against § 87(2)(b)	

Case Summary

§ 87(2)(b) made a complaint with IAB via telephone on November 30, 2009 and the complaint was received by the CCRB on December 4, 2009 (Encl. 4A and 5A-C). § 87(2)(b) made the complaint on behalf of several other individuals and was not a witness to the incident.

On November 21, 2009 at about 6:50 pm, officers apprehended several civilians for smoking marijuana in the vicinity of § 87(2)(b) in Brooklyn. The following allegations resulted:

- **Allegation A – Force:** Officers used physical force against § 87(2)(b) and § 87(2)(b) § 87(2)(g).
- **Allegation B – Abuse of Authority:** Officers threatened § 87(2)(b) and § 87(2)(b) with the use of force. § 87(2)(g).
- **Allegation C – Force:** PO § 87(2)(b) Davis used physical force against § 87(2)(b) and § 87(2)(b) § 87(2)(g).
- **Allegation D – Force:** PO Jason Brunson used physical force against § 87(2)(b) § 87(2)(b), § 87(2)(g).
- **Allegation E – Force:** PO David Afanador struck § 87(2)(b) with an asp. This § 87(2)(b), § 87(2)(g).
- **Allegation F – Force:** An officer used physical force against § 87(2)(b) This § 87(2)(b), § 87(2)(g).

This case was originally assigned to Investigator Lindsay Broughel. It was subsequently reassigned to Investigator Igor Volynets for closure.

Results of Investigation

Civilian Statement(s)

Victim: § 87(2)(b)

§ 87(2)(b)

CCRB Testimony

On January 20, 2010, § 87(2)(b) was interviewed by the CCRB (Encl. 7A-F). On November 21st, 2009, at approximately 6:45pm, § 87(2)(b) exited his apartment, number § 87(2)(b) on the § 87(2)(b) at § 87(2)(b) in Brooklyn. § 87(2)(b) had been inside his apartment all day and was leaving to go to the § 87(2)(b) grocery store on Flatbush Avenue and

7th Avenue. As soon as § 87(2)(b) exited his apartment he heard commotion, which sounded like male and female voices yelling. § 87(2)(b) did not hear what these people were saying when he exited the apartment. He went down the stairwell to exit the building and at the § 87(2)(b) he stepped in the hallway to see what was going on, since he knew that his sister, § 87(2)(b) was in apartment § 87(2)(b) where § 87(2)(b)'s aunt and uncle, § 87(2)(b) and § 87(2)(b) reside. When § 87(2)(b) exited into the hallway on the 4th floor by the stairs he saw his cousins with four uniformed officers at the other end of the hallway. § 87(2)(b) did not know why the four individuals had been stopped by the officers. The officers were standing with § 87(2)(b) and § 87(2)(b) who were all handcuffed. § 87(2)(b) and § 87(2)(b) are cousins and both of them are § 87(2)(b)'s cousins. Additional individuals, namely § 87(2)(b) and a number of other people who § 87(2)(b) could not identify, were standing watching the scene and telling the officers that the individuals arrested had not done anything wrong and to let them go.

§ 87(2)(b) maintained his distance from the group and did not say anything while watching. § 87(2)(b) saw PO1 (white male, 6'2" tall, heavy set, about 270 lbs, with completely gray hair, in his 40s with no facial hair and no glasses, identified as PO David Afanador) and PO2 (was a heavy set white male, who may have been Hispanic, about 5'9" tall, about 250-260 lbs with grayish hair, no facial hair and no glasses in his 40s, identified as PO ##### Davis) pushing and grabbing the four individuals that were handcuffed and were trying to bring them over to the other end of the hallway. § 87(2)(b) did not see the four handcuffed individuals react to the officers pushing them in any way other than saying to the officers that their pushing was unnecessary. In addition, the officers were telling people to stay back and to calm down. PO Davis then struck § 87(2)(b) in the face with a closed fist on § 87(2)(b) left cheek. § 87(2)(b) did not do or say anything after he was punched in the face. The officers moved the individuals towards the stairwell to bring them downstairs. When they passed the elevator, an unidentified pushed the back of § 87(2)(b)'s head against the elevator door, using an open palm against § 87(2)(b)'s face. The officers dragged the four arrestees into the corner of the hallway, past § 87(2)(b) and told everyone to get back. All the officers continued pushing the individuals in handcuffs and threatened to pepper spray them.

Around this time, § 87(2)(b) § 87(2)(b)-year-old sister, § 87(2)(b) came out of apartment § 87(2)(b) saw PO Davis strike § 87(2)(b) in the face with a closed fist on her left cheek, causing her head to hit the wall. § 87(2)(b) did recall hearing PO Davis say anything to § 87(2)(b) before he struck her. § 87(2)(b) noted that § 87(2)(b) was saying things to PO Davis before she was struck, but that she did not initiate physical contact with PO Davis before she was struck. § 87(2)(b) put up her closed fists in front of her body after PO Davis struck her, "putting her guard up." § 87(2)(b) believed that PO Davis swung at § 87(2)(b) again, but he did not know whether he hit her or missed her. § 87(2)(b) was not aware of § 87(2)(b) ever striking PO Davis. § 87(2)(b) tried to separate PO Davis and § 87(2)(b) by standing between them and pushing § 87(2)(b) back. At this time, § 87(2)(b) stated that his body may have brushed PO Davis when he got between them, but that he had no other physical contact with PO Davis.

A white male officer, identified as PO Jason Brunson, grabbed § 87(2)(b) by the back of his clothes and threw him face-down to the ground. No other officers assisted in bringing § 87(2)(b) to the floor. Once on the floor, § 87(2)(b) felt simultaneous kicking and striking with what believed to be a baton. § 87(2)(b) did not know which officers were involved in

kicking and striking him because he stated that by this time more than ten additional officers had arrived on scene. In total he was kicked more than ten times on his back, legs, and right arm. § 87(2)(b) was in shock and lay still. Once the kicking and striking stopped, § 87(2)(b) was handcuffed by an unknown officer. After he was handcuffed and was still on the ground, an unidentified officer walked over to § 87(2)(b) and kicked him in the face on the upper nose/forehead. The kick knocked § 87(2)(b)'s glasses off his face and they broke as a result. § 87(2)(b)'s nose began bleeding and blood got onto his clothing. § 87(2)(b) also stated that his right elbow was bleeding during the incident as a result of being struck by the baton.

Once § 87(2)(b) was placed inside the cells at the 77th Precinct stationhouse and the handcuffs were removed he noticed that he could not move his right arm. He told a number of officers that he wanted medical attention. About one hour after arriving at the precinct, § 87(2)(b) was transported to § 87(2)(b) in an ambulance. PO Afanador accompanied § 87(2)(b) to the hospital. At the hospital, x rays were taken of his face and his right arm and there were no broken bones. § 87(2)(b)'s right elbow, which had split skin in addition to swelling and pain, was wrapped to secure the joint. § 87(2)(b) also sustained bruising to his back and two black eyes as a result of this incident and swelling to his nose and bruising on his wrists from the handcuffs. § 87(2)(b) received pain killers at the hospital and was returned to the stationhouse.

Arrest Photograph

§ 87(2)(b)'s arrest photograph displays a small cut on his nose. It does not show any other bruising or swelling on his face (Encl. 7G).

Attempts to Contact Civilians

The CCRB made multiple attempts to reach out to the additional victims and potential witnesses via letters and phone calls. Between December 12, 2009 and February 5, 2010, the CCRB reached all the identified victims by telephone and obtained brief statements from them. On February 12, 2010, the CCRB canvassed the incident location in an unsuccessful attempt to reach the victims in person. To date, these individuals have not cooperated in scheduling an interview appointment and have not indicated an interest in participating in this investigation.

NYPD Statement(s):

Subject Officer: PO DAVID AFANADOR

- § 87(2)(b)
- On November 21, 2009, PO Afanador worked a tour from 1730 x 0205 hours and was assigned to the 77th Precinct conditions team. He was working with Sgt. Daniel Zollo, PO ##### Davis and PO Jason Brunson. PO Afanador was dressed in uniform and assigned to a marked van.

Memo Book

PO Afanador prepared memo books in connection with this incident that are consistent with his CCRB testimony (Encl. 14A-B).

CCRB Testimony

On May 7, 2010, PO David Afanador was interviewed at the CCRB (Encl. 15A-C). On November 21, 2009, at approximately 6:40 pm, PO Afanador and his partners were in their vehicle when they observed three males and one female smoking a marijuana blunt, wrapped in brown paper, in front of § 87(2)(b). PO Afanador was sitting in the backseat of his police vehicle at the time that he observed the individuals to the right of the front door of the building, standing in a circle. PO Afanador saw two individuals smoke the blunt, but saw the marijuana passed around so that he witnessed all four of them hold the marijuana at some point. PO Afanador, PO Brunson, PO Davis and Sgt. Zollo all exited their vehicle to stop the individuals. Before the officers could get close to the suspects, they ran inside the building. PO Afanador did not know what happened with the marijuana and did not know if it was recovered from the scene. The officers gave chase and inside the building they chased the four individuals up the stairway and repeatedly yelled for them to stop.

When he arrived at the § 87(2)(b) PO Afanador saw the four individuals standing in front of an apartment that had its door open. Two of the individuals, a female, identified as § 87(2)(b) and a male, identified as § 87(2)(b) were standing with two other civilians in front of the apartment door and the two other males who had been seen smoking in front of the building were cowering behind § 87(2)(b) and the other male. The officers stopped the four suspects and asked them for ID. At this time, more family members of those stopped came out of the apartment and started yelling. PO Afanador did not recall what statements the family members were making. Once people came out of the apartment, Sgt. Zollo told the officers to handcuff the four individuals and remove them to the precinct. Two of the males arrested were handcuffed by unknown officers without incident. PO Afanador then went to handcuff a male, identified as § 87(2)(b) resisted by not allowing his arms to be put behind his back and an additional officer, that PO Afanador could not identify, assisted PO Afanador in handcuffing him. Meanwhile other officers were attempting to handcuff a male identified as § 87(2)(b) began to resist by flailing his arms and pushing the officers back away from him.

Once § 87(2)(b) began resisting, then § 87(2)(b) began resisting while handcuffed by checking his shoulders into PO Afanador and other officers. At this time, while the officers were still attempting to handcuff § 87(2)(b) more family members exited into the hallway and physically tried to separate the officers from the prisoners. At this time more than 20 people had come out of the apartment and were on the § 87(2)(b) coming after the officers. PO Afanador

and PO Brunson were able to get two or three of the male prisoners into a corner by the stairwell. § 87(2)(b) and § 87(2)(b) began kicking the officers. § 87(2)(b) tried to head butt PO Afanador and PO Afanador put him in a headlock to subdue him and backed him into the corner with PO Brunson. Once in the corner, § 87(2)(b) and § 87(2)(b) continued to try to kick and hit the officers. PO Afanador did not recall whether he hit a male's head against the wall of the hallway, but stated that he was pushing a lot of people back and the officers were confined in an area that was between the wall and the stairwell. PO Afanador turned back towards PO Davis who was attempting to push back the crowd. Just seconds after PO Afanador turned back towards the crowd, he saw a female, identified as § 87(2)(b) punch PO Davis on the upper left side of his head. PO Afanador believed PO Davis and § 87(2)(b) "exchanged blows," but he did not specifically see PO Davis strike or punch § 87(2)(b). PO Afanador indicated that § 87(2)(b) initiated contact with PO Davis.

Once PO Davis and § 87(2)(b) began struggling, a male identified as § 87(2)(b) emerged from the crowd and yelled, "That's my sister!" § 87(2)(b) wrapped his arms around PO Davis's legs and tried to flip him up into the air. PO Davis used his dead weight to push § 87(2)(b) down and they both fell to the ground on top of each other. § 87(2)(b) then punched PO Davis two to three times in the upper chest, face or head area. PO Davis and § 87(2)(b) also "exchanged blows" but PO Afanador could not see exactly where PO Davis or § 87(2)(b) punched each other. At this time, members of the crowd were approaching PO Davis from behind and were attempting to overcome him and PO Afanador yelled for the crowd to get back. The crowd was not getting back and PO Afanador feared for his and his fellow officers' safety and so he removed his asp and began swinging it at the crowd. He struck § 87(2)(b) about three times in the arm and struck a number of other individuals in the crowd.

Once PO Afanador got the crowd to move back far enough, and once most of the individuals in the crowd went back into the apartment, PO Afanador went over to assist PO Davis, who was still struggling with § 87(2)(b) on the ground of the hallway. PO Afanador struck § 87(2)(b) approximately three times in the arms or legs with his baton. He was then able to assist PO Davis in rolling § 87(2)(b) from his side onto his stomach and together PO Davis and PO Afanador placed § 87(2)(b) in handcuffs. A few seconds after § 87(2)(b) was handcuffed additional officers arrived on scene. PO Afanador estimated that at least 20 officers arrived on scene, some of which were from different precincts. The five individuals arrested at the scene were escorted out of the building. At this time, PO Afanador saw that § 87(2)(b) was bleeding from the face, but he could not recall where and did not know how § 87(2)(b) sustained the injury.

PO Afanador never punched any individuals during this incident. PO Afanador never saw PO Brunson or Sgt. Zollo strike any individuals during this incident. PO Afanador never threatened to use pepper spray during the incident and did not hear any other officers threaten to use pepper spray. After § 87(2)(b) was handcuffed, PO Afanador never kicked him and did not see any other officers kick him. No other officers besides PO Afanador had asp drawn during the incident. PO Afanador did not know if § 87(2)(b) went to the hospital. PO Afanador indicated that his hand was hurting him after the incident, but he did not recall how he sustained the injury and that PO Davis's face was hurting him after the incident, but neither of the officers went to the hospital.

Subject Officer: PO ##### DAVIS

- § 87(2)(b)
- On November 21st, 2009, PO Davis worked a tour from 1730 x 0205 hours and was assigned to the 77th Precinct conditions team. He was working with Sgt. Zollo, PO Afanador and PO Brunson. PO Davis was dressed in uniform and assigned to a marked van.

CCRB Testimony

On May 6, 2010, PO ##### Davis was interviewed at the CCRB (Encl. 11A-C). His statement is consistent with that of PO Afanador.

Subject Officer: PO JASON BRUNSON

- § 87(2)(b)
- On November 21st, 2010, PO Brunson worked a tour from 1730 x 0205 and was assigned to the 77th Precinct conditions team. He was working with Sgt. Zollo, PO Afanador and PO Davis. He was dressed in uniform and assigned to a marked van.

CCRB Testimony

On May 13, 2010, PO Brunson was interviewed at the CCRB (Encl. 20A-C). His statement is consistent with that of PO Afanador.

Witness Officer: SGT. DANIEL ZOLLO

- § 87(2)(b)
- On November 21st, 2009, Sgt. Zollo worked a tour from 1715 x 0212 hours and was assigned as the 77th Precinct conditions supervisor. He was working with PO Afanador, PO Davis and PO Brunson. Sgt. Zollo was dressed in uniform and assigned to a marked van.

CCRB Testimony

On May 12th, 2010, Sgt. Daniel Zollo was interviewed at the CCRB (Encl. 20A-C). His statement is consistent with that of PO Afanador.

Medical Records

According to the Ambulance Call Report, § 87(2)(b)'s statement to EMS was "my right arm and elbow hurts" (Encl. 23B). § 87(2)(b) was brought to § 87(2)(b) on the evening of November 21, 2009 in police custody. § 87(2)(b) complained of pain with swelling and bleeding to the nose as well as pain with abrasions and bleeding to right forearm. § 87(2)(b) states he was in a large fight and struck in the face. X-rays were taken of his nasal bone and left forearm which showed no fracture. He was diagnosed with a contusion to the nasal bone and forearm. The wound to his right forearm was cleaned and dressed. § 87(2)(b) did not make any statements regarding his interaction with the police (Encl. 24A-N).

NYPD Document(s)

Command Log

The command log entry for § 87(2)(b)'s arrest notes that he sustained contusions to the face and was removed to § 87(2)(b) for treatment (Encl. 27J).

Summons/Arrest for Incident and Disposition

- § 87(2)(b)'s arrest has been adjourned in contemplation of dismissal for November 26, 2010 (Encl. 33E).

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on December 4, 2009, claiming physical, emotional, and psychological injury and seeking one million dollars as redress (Encl. 8A-G). As of July 12, 2010, the CCRB was unable to obtain any information regarding any 50H hearings.

Civilian(s) Criminal History

- As of June 25, 2010, Office of Court Administration records reveal no criminal convictions for § 87(2)(b).

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (Encl. 3B).

Subject Officer(s) CCRB History

- PO Afanador has been a member of the service for five years and there are no substantiated CCRB allegations against him (Encl. 2A).
- PO Brunson has been a member of the service for three years and there are no substantiated CCRB allegations against him (Encl. 2B).
- PO Davis has been a member of the service for seven years and there are no substantiated CCRB allegations against him (Encl. 2C).

Conclusion

Identification of Subject Officer(s)

PO Afanador, PO Brunson, and PO Davis confirmed their presence at the incident and are being listed as subject officers.

Investigative Findings and Recommendations

Allegation A – Force: Officers used physical force against § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

Allegation B – Abuse of Authority: Officers threatened § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) with the use of force.

Allegation C – Force: PO ##### Davis used physical force against § 87(2)(b) and

§ 87(2)(b)

§ 87(2)(b), § 87(2)(g)

Allegation D – Force: PO Jason Brunson used physical force against § 87(2)(b)

Allegation E – Force: PO David Afanador struck § 87(2)(b) with an asp.

It is undisputed that PO Brunson used force to restrain § 87(2)(b) and that PO Afanador struck § 87(2)(b) with an asp. § 87(2)(b) admitted to intervening between PO Davis and § 87(2)(b) as the two were fighting but denied resisting before he was allegedly pushed on the ground. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)
[Redacted text block]

Allegation F – Force: An officer used physical force against § 87(2)(b)
§ 87(2)(b), § 87(2)(g)
[Redacted text block]

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date